

a matter of law. (Code of Civ. Proc. § 437c(c), (p)(1).) If the plaintiff meets that initial burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists. (*Id.*)

To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position. (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193-1194; Civ. Code § 3412.)

Cross-Complainants have shown the quitclaim deed recorded on April 5, 2011 ("2011 Deed") transferring Maria's ownership in the property 1226 S. Flower Street, Santa Ana, CA 92707 and the quitclaim deed recorded on April 8, 2024 ("Corrective Deed") correcting spelling errors in the 2011 Deed are void because she did not have the present intent to transfer ownership at that time but intended to have the deeds to take effect upon her death. (*Meyer v. Wall* (1969) 270 Cal.App.2d 27 ["A deed delivered with the intent that it shall take effect only on the death of the grantor is an attempted testamentary disposition and therefore void"]; Cross-Complainants Statement of Undisputed Material Facts ("UMF") 3-14; RJN, Exs. C, D, E.)

To show reasonable apprehension of injury, Cross-Complainants argue the 2011 Deed and Corrective deed have increased property tax liability on the subject property. However, they produced no evidence showing property taxes have actually increased. Nevertheless, as pointed out by Cross-Complainants, Cross-Defendant has sued Maria, Juan and Luis based on the 2011 Deed and Corrective Deeds, showing legal prejudice and reasonable apprehension of serious injury if the deeds are left outstanding. (ROA 11.) Cross-Complainants met their initial burden on both elements of their claim for cancellation of instruments, and the burden shifted to Cross-Defendant to show a triable issue of fact.

To establish a triable issue of material fact, the party opposing a motion for summary judgment must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166; *Uhrich v. State Farm Fire & Cas. Co.* (2003) 109 Cal.App.4th 598, 616.) Contrary to Cross-Defendant's contention, Maria's declaration is not the only evidence showing Maria's state of mind, as Cross-Complainants have also produced the declarations of Juan, Luis and Alejandro as well as the quitclaim deed recorded on April 25, 2024 which show Maria did not have the present intent to transfer ownership with the 2011 Deed and Corrective Deed. (UMF 8-14; RJN, Ex. E.) Thus, their credibility is not considered. (Code of Civ. Proc. § 437c(e).)

The only evidence produced by Cross-Defendant as to Maria's intent is Cross-Complainants Joint Discovery Declaration ("Joint Declaration") produced in this action. (Declaration of Brian P. Ballo, Ex. A.) However, the facts stated in the Joint Declaration corroborate Cross-Complainants' position that Maria did not have the present intent to transfer ownership with the 2011 Deed and

		Corrective Deed. Cross-Defendant's evidence on property tax liability is moot, because Cross-Complainants failed to produce sufficient evidence on that point. Cross-Defendant failed to meet her shifted burden showing a triable issue of material fact. The motion is therefore GRANTED. Cross-Complainants shall give notice of this ruling.
3	Wyant vs. Marks	Defendant A Better Life Recovery, LLC's ("Defendant") unopposed Application for Pro Hac Vice Admission of Daria A. Porta (Porta) is GRANTED. Defendant has complied with the requirements of CRC Rule 9.40. The court hereby approves the application and orders that Porta may be admitted on a pro hac vice basis in this case. Defendant to give notice.
4	Saracino v. Rzakhanova	The motion to strike the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) pursuant to Code of Civil Procedure section 425.16 filed by defendant Gulzhanat Rzakhanova (Defendant) is DENIED. "Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385, 205, fn. omitted.) Only a claim that satisfies both prongs - i.e., that arises from protected speech or petitioning and lacks even minimal merit - can be stricken under the SLAPP statute. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88-89; <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 Cal.4th 728, 733.) Prong One: "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." (<i>Baral, supra</i>, 1 Cal.5th at p. 396.) "A claim arises from protected activity within the meaning of section 425.16(b)(1) if the activity underlies or forms the basis for the claim." (<i>Newport Harbor Offs. & Marina, LLC v. Morris Cerullo World Evangelism</i> (2018) 23 Cal.App.5th 28, 44.) Where there are "mixed" causes of action involving both protected and nonprotected activity, it is the moving party's burden to identify in the motion the allegations of protected activity and the claims arising from it. A motion directed only to an entire complaint may be denied if some claims involve nonprotected activity. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, §7:772, citing <i>Baral, supra</i>, 1 Cal.5th at 391; see also, <i>Park v. Nazari</i> (2023) 93 Cal.App.5th 1099, 1108 n.5.) Here, in the notice of motion, Defendant moved for an order striking Plaintiffs' complaint in its entirety and dismissing this action with prejudice. (See Notice of Motion at p. 2:1-3.) Defendant maintained in the memorandum of points and authorities that Plaintiffs' entire